

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 14, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	22CV396112	Santa Clara County Federal Credit Union v. Hilda Figueroa	Claim of exemption by judgment debtor Hilda Figueroa related to wage garnishment. Notice is proper, and the judgment debtor has the burden of proof. The claim is DENIED. Judgment debtor's financial statement shows sufficient non-exempt funds to satisfy judgment creditor's request. The judgment takes priority over the judgment debtor's unsecured installment debt. The proposed withholding amount of \$0 is unreasonable. (Code Civ. Proc., § 706.123.) Judgment creditor to submit proposed order.

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Calendar Lines 1 and 2

Case Name: Menachem Hahn et al. v. Yu Cao et al.

Case No.: 25CV466752

This is an action for motor vehicle negligence brought by plaintiffs Menachem Hahn, Shayna Partouche, and Ness H. (Plaintiffs) against defendants Yu Cao (Cao), Elijah Batino (Batino), and Doe defendants. It arises from an alleged motor vehicle accident that occurred on January 5, 2025 on south-bound Route 9 in Los Gatos, California.

The original and still operative complaint, a form complaint, purports to allege two causes of action: (1) motor vehicle negligence; and (2) “intentional tort.” (The second cause of action is a category of cause of action, not a cause of action in itself.) The complaint also has an exemplary damages attachment. There are no exhibits attached to the complaint. Defendant Batino filed an answer to the complaint in August 2025.

At issue are Cao’s demurrer to, and motion to strike portions of, the complaint. Plaintiffs oppose.

DISCUSSION

Cao’s Demurrer

Cao demurs to the second cause of action on the basis that it fails to state sufficient facts. (See notice of demurrer.)

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations, but does not accept as true contentions, deductions, or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) A demurrer will be overruled if the allegations of the complaint state a cause of action “under any legal theory.” (*Doan v. State Farm General Ins. Co.* (2011) 195 Cal.App.4th 1082, 1091.)

The court cannot consider extrinsic evidence in ruling on a demurrer or motion to strike. That includes declarations. The court has considered the two (essentially identical) declarations from Cao counsel Adam Tanouye in support of the demurrer and motion to strike only to the extent they discuss the meet and confer efforts required by statute and has not considered the attached exhibits. The court has not considered any portion of the two declarations filed by Plaintiffs’ counsel Mark Rosenberg.

There is no cause of action for “intentional tort.” That label instead describes a category of civil causes of action. As currently pleaded, the second cause of action merely asserts that the same conduct alleged to be negligence in the first cause of action also constitutes an unspecified intentional tort. “A negligent person has no desire to cause the harm that results from his carelessness, ... and he must be distinguished from a person guilty of willful misconduct, such as assault and battery, who intends to cause harm.” (*Mahoney v. Corralejo* (1974) 36 Cal.App.3d 966, 972.) “Willfulness and negligence are contradictory terms.” “If conduct is negligent, it is not willful; if it is willful, it is not negligent.” (*Ibid.*) “No amount of descriptive adjectives or epithets may turn a negligence action into an action for intentional or willful misconduct.” (*Carter v. Prime Healthcare Paradise Valley LLC*